

Inland Postal Articles (Insurance) Act, 1963

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Internal Postal Article (Insurance) Act, 2019

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Amending Acts

1. Nepal Acts Amendment, Repeal and Re-enactment

Act, 2019 2019.12.30

Certification and Date of Publication

2. Republic Strengthening and Some Nepal Laws Amendment

Act, 2066 2066.10.7

Act No. 18 of the year 2019

An Act made to provide for the insurance of articles transmitted by post within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Preamble: Whereas it is expedient to make provision for insuring articles transmitted by post against loss or damage and for providing compensation in the event of such articles being lost or damaged within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

Therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act in accordance with Article 93 of the Constitution of Nepal amended by the Nepal Acts Amendment, Repeal and Re-enactment Act, 2019.. 1. Short Title, Extent and Commencement: (1) This Act may be cited as the "Internal Postal Article (Insurance) Act, 2019".

(2) This Act shall extend throughout Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act -

(a) "Postal article" means a letter, postcard, newspaper, book, packet of sample articles, parcel, and any article or thing which may be transmitted by post.

(b) "Post office" means a post office established by the Government of Nepal for the transmission of postal articles by post from one area to another within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(c) "Postmaster General" means the Postmaster General of the Postal Department of the Government of Nepal.

(d) "Insurance" means insurance against loss or damage occurring while the article is being transmitted by

post.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Interpretation: For the purposes of this Act -

(a) Any postal article shall be deemed to be in the course of transmission by post from the time it is delivered at a post office until it is delivered to the addressee, or returned to the sender, or until action is taken under Section 7.

(b) A postal article shall be deemed to have been delivered at a post office after it has been handed over to a person authorized for that purpose at that post office.

(c) A postal article shall be deemed to have been delivered to the addressee after it has been delivered to the addressee, or to an agent authorized by the addressee to receive such article.

4. Insurance of Postal Articles: The Government of Nepal may, by notification published in the Nepal Gazette from time to time, prescribe the following:

(a) That any postal article may be insured against loss or damage while being transmitted by post, subject to the provisions contained in other sections of this Act, at the post office where such postal article is delivered, and a receipt thereof shall be given by the post office to the person delivering the postal article; and

(b) That, in addition to the postage stamps and fees required for ordinary post and registration, such fee as may be prescribed in the said notification shall be charged for the insurance fee of such postal article. 5.

Liability in respect of Insured Postal Articles: Subject to the prescribed terms and conditions, if any insured postal article, or any part thereof, is lost or damaged while in the course of transmission by post, the Government of Nepal shall be responsible for paying compensation to the sender of such postal article, not exceeding the amount for which it was insured. Provided that in no case shall compensation be paid exceeding the actual value of the article lost or damaged. 6. Procedure in case of inability to deliver insured articles: If any insured postal article arriving by post cannot, for any reason, be delivered to the addressee, such article shall be kept at the post office for the prescribed period, and if it remains undeliverable to the addressee even after that period, it shall be returned free of fee to the sender through the same post office from which the insurance and postage were paid and the article was despatched. If any such postal article sent back to the sender cannot, for any reason, be returned and delivered to the sender either, it shall be sent to the Postmaster General. 7.

Action by Postmaster General regarding insured postal articles which cannot be delivered: The Postmaster General shall take, or cause to be taken, the following action in respect of each insured postal article which cannot be delivered to the addressee and also cannot be returned and delivered to the sender as mentioned in Section 6: (a) Efforts shall be made, as far as possible, to deliver or return such postal article by post to the addressee or sender, as the case may be, in its existing condition without opening it. (b) If it appears that the article cannot be delivered in its existing condition without opening it as per clause (a), the Postmaster General, or an officer authorized by him for that purpose, shall open the postal article confidentially to ascertain the name and address of the sender and attempt to return it to the sender. (c) If it cannot be delivered as per clause (a) or (b), the details of such postal articles shall be published in the Nepal Gazette and kept safely in the Postal Department of the Government of Nepal for a period of one year, and if no claimant appears even within that period, the postal article, if it is cash currency, shall be deposited as cash itself, and if it is other saleable goods, it shall be sold by auction and the proceeds thereof shall be deposited in the name of the Government of Nepal. 8. Power to make Rules: (1) The Government of Nepal may make

rules for carrying out the objectives of this Act. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may, in particular, make provision for the following matters: (a) The types of postal articles that may be insured under this Act, (b) The maximum limit of the value of postal articles that may be insured, (c) The method of paying the insurance fee, and (d) The form, type, size, weight of the envelope in which the insured postal article is to be packed, the manner of affixing postage stamps, the manner of affixing seals, the manner of writing the name, address of the sender and the name, address of the addressee. (3) The method of insuring postal articles at the post office, the place, time and manner of delivery after insurance shall be as prescribed by the Postmaster General from time to time by notification published in the Nepal Gazette. 9. omitted by the Nepal Acts Amendment, Repeal and Re-enactment Act, 2019.